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April 16, 2026

ENGROSSED HOUSE
BILL NO. 4105

By: Ford and Deck of the House

and

Hamilton of the Senate

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 1750.2, which relates to the Oklahoma Security Guard and Private Investigator Act; clarifying the definition of security guard; exempting certain persons from definition; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1750.2, is amended to read as follows:

Section 1750.2. As used in the Oklahoma Security Guard and Private Investigator Act:

1. "Client" means any person or legal entity having a contract with a person or entity licensed pursuant to the Oklahoma Security Guard and Private Investigator Act, which contract authorizes services to be performed in return for financial or other considerations;

1 2. "Council" means the Council on Law Enforcement Education and
2 Training;

3 3. "License" means authorization issued by the Council pursuant
4 to the Oklahoma Security Guard and Private Investigator Act
5 permitting the holder to perform the functions of a security guard,
6 armed security guard, private investigator, investigative agency, or
7 security agency;

8 4. "Private investigator" means a person who is self-employed,
9 or contracts with, or is employed by an investigative agency for the
10 purpose of conducting a private investigation and reporting the
11 results to the employer or client of the employer relating to:

- 12 a. potential or pending litigation, civil or criminal,
- 13 b. divorce or other domestic investigations,
- 14 c. missing persons or missing property, or
- 15 d. other lawful investigations, but shall not include:

16 (1) a person authorized or employed by the United
17 States government, any state government, or any
18 agency, department, or political subdivision
19 thereof while engaged in the performance of
20 official duties,

21 (2) a person or employee of a firm, corporation or
22 other legal entity engaged exclusively in a
23 profession licensed by any board, commission,
24 department or court of this state, or

1 (3) a bona fide, salaried, full-time employee of a
2 firm, corporation or other legal entity not in
3 the primary business of soliciting and providing
4 private investigations, who conducts
5 investigations that are exclusive to and
6 incidental to the primary business of said firm,
7 corporation or entity, and when the costs of such
8 investigations are not charged directly back to
9 the particular client or customer who directly
10 benefits from the investigation;

11 5. "Armed private investigator" means a private investigator
12 authorized to carry a firearm;

13 6. "Security agency" means a person, firm, corporation, or
14 other private legal entity in the business of security guard
15 services or armed security guards for hire;

16 7. "Security guard" means an individual contracting with or
17 employed by a security agency, private business or person to prevent
18 trespass, theft, misappropriation, wrongful concealment of
19 merchandise, goods, money or other tangible items, or engaged as a
20 bodyguard or as a private watchman to protect persons or property,
21 but shall not include:

22 a. for individuals operating unarmed, any person employed
23 as a private watchman or security guard by one
24 employer only in connection with the affairs of such

1 employer where there exists an employer-employee
2 relationship,

3 b. for any event including, but not limited to, concerts,
4 festivals, and sporting events, for individuals
5 operating unarmed, any person contracted as an usher
6 queue agent, ticket agent, gate agent, credential
7 verification agent, or person whose duties include the
8 operation of electronic detection devices and checking
9 of personal items and bags, or similar role,

10 c. a full-time or active reserve certified peace officer
11 of the United States, this state, or any political
12 subdivision of either:

13 (1) while such peace officer is engaged in the
14 performance of his or her official duties within
15 the course and scope of his or her employment
16 with the United States, this state, or any
17 political subdivision of either,

18 (2) while such peace officer is engaged in the
19 performance of his or her duties as a railroad
20 police officer,

21 (3) who receives compensation for private employment
22 on an individual or an individual independent
23 contractual basis as a patrolman, guard, or
24 watchman if such person is employed in an

1 employer-employee relationship or is employed on
2 an individual contractual basis, or
3 (4) who receives compensation from an employer-
4 employee relationship or an individual
5 independent contractor basis with any licensed
6 security agency as defined in this section or any
7 private business or person to perform security or
8 investigative services,

9 ~~e.~~

10 d. any person whose terms of employment as a security
11 guard are governed by a collective bargaining
12 agreement on May 9, 1989, and

13 ~~d.~~

14 e. any person who is employed as a full-time security
15 guard by a financial institution on May 9, 1989;

16 8. "Armed security guard" means a security guard authorized to
17 carry a firearm;

18 9. "Investigative agency" means a self-employed private
19 investigator, a firm, a corporation, or other private legal entity
20 in the business of soliciting the business of private investigation
21 and/or providing private investigations and investigators;

22 10. "Special event" means a public activity in the form of an
23 athletic contest, charity event, exposition or similar event that
24 occurs only on an annual or noncontinuing basis; and

1 11. "Special event license" means a temporary license issued
2 pursuant to the Oklahoma Security Guard and Private Investigator Act
3 which restricts the license holder to employment as a security guard
4 only for the duration of a particular event.

5 SECTION 2. This act shall become effective November 1, 2026.

6 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
7 April 16, 2026 - DO PASS
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